

ELIZABETH II**1988 CHAPTER xvii**

An Act to confer powers upon Downs Crematorium Limited with respect to the Brighton and Preston Cemetery; and for other purposes. [28th June 1988]

WHEREAS—

(1) Downs Crematorium Limited was incorporated as a company in 1885 under the name The Brighton & Preston Cemetery Company Limited and on 15th December 1971 became and is now incorporated under the name Downs Crematorium Limited (hereinafter referred to as “the Company”) as a company limited by shares:

(2) The Company purchased in 1885 some 30 acres of land in the borough of Brighton in the county of East Sussex and have since then carried on a cemetery on the said land known as the Brighton and Preston Cemetery (hereinafter referred to as “the cemetery”):

(3) It is expedient that the Company be authorised to extinguish certain rights of burial in the cemetery and to remove tombstones and other memorials from the cemetery in order that better use may be made of the lands in the cemetery available for burials:

(4) It is expedient that the other provisions contained in this Act should be enacted:

(5) The objects of this Act cannot be attained without the authority of Parliament:

(6) Copies of a plan showing the cemetery and a book of reference thereto were duly deposited in the office of the Clerk of the Parliaments, House of

Lords, and in the Private Bill Office, House of Commons, and with the proper officers of the councils of the county of East Sussex and the borough of Brighton, which plan is in this Act referred to as the deposited plan:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title. 1. This Act may be cited as the Brighton and Preston Cemetery Act 1988.

Interpretation. 2. In this Act, unless the subject or context otherwise requires—
 “the borough” means the borough of Brighton;
 “burial” includes the interment of cremated remains;
 “the cemetery” means the Brighton and Preston Cemetery in the borough comprising the lands and buildings delineated on the deposited plan;
 “the Commission” means the Commonwealth War Graves Commission;
 “the Company” means Downs Crematorium Limited;
 “memorial” means any monument, headpiece, headstone, flatstone, slab, footstone, borderstone, kerbstone, tombstone, tablet and includes any wall, kerb or railing protecting, enclosing or marking a grave or grave space or memorial (including any permanent covering thereon) or any other commemorative object placed in the cemetery including vases, flower containers or other similar objects, but does not include a vault;
 “registered owner” in relation to any right of burial means the person at the time in question registered as the owner in the register of grants of exclusive rights of burial maintained by the Company and
 “registered address” means an address registered in that register,
 and references to a grave shall be construed as including references to a vault.

Power to
extinguish
rights of
burial in
cemetery.

3.—(1) Where in respect of any grave space in the cemetery a right of burial has not been exercised for 50 years or more from the date of the latest burial in the grave space or, if there has been no burial in the grave space, from the date of the grant of the right of burial in the grave space, the Company may, in accordance with the provisions of this section, extinguish the right of burial in that grave space and use the space for other burials:

Provided that no right of burial granted after the passing of this Act for any period longer than 50 years shall be extinguished under this section.

(2) The power of the Company under subsection (1) above to extinguish a right of burial in any grave space in which there has been a burial shall include power to remove any memorial in or on the grave space.

(3) Before extinguishing a right of burial or removing any memorial under the powers of this section, the Company shall—

- (a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in the borough, with an interval between the dates of publication of not less than 6 clear days;
- (b) display a notice thereof in a conspicuous position at each of the principal entrances to the cemetery; and
- (c) serve a notice thereof upon the registered owner of the right of burial at his registered address.

(4) Not later than the date upon which any such notice as is referred to in subsection (3) above is first published in a local newspaper circulating in the borough, the Company shall serve a copy of such notice upon the Commission.

(5) Each of the notices shall—

- (a) contain full particulars of the Company's proposals including a specification of the registered number or other description of all grave spaces in respect of which it is proposed that rights of burial should be extinguished and stating whether it is proposed that any memorial should be removed;
- (b) specify the date on which it is intended that the rights should be extinguished and any memorial removed, which date shall not be earlier than 6 months after the date of the later of the two publications, or the date on which notice is first displayed, or the date on which notice is served whichever is the later; and
- (c) state the effect of subsections (6), (7) and (9) below.

(6) If notice of objection to the extinction of a right of burial in any grave space is given to the Company before the date specified under subsection (5) (b) above by the registered owner of the right of burial and that objection is not withdrawn the right of burial to which the objection relates shall not be extinguished under this section.

(7) If notice of any other objection to the extinction of any rights of burial or to the removal of any memorial, and of the ground of any such objection, is given to the Company before the date specified under subsection (5) (b) above and is not withdrawn, any rights or memorial to which such last-mentioned objection relates shall not be extinguished or removed without the consent of the Secretary of State.

(8) Any memorial removed by the Company under this section shall remain the property of the owner thereof but, if such owner does not claim it within a period of 3 months after the date specified under subsection (5) (b) above, the Company may put the memorial to such use as the Company deems appropriate or the Company may destroy it.

(9) (a) As compensation for any right of burial extinguished under this section the Company shall, on a claim being made by the registered owner of the right of burial within 6 months from the extinguishment of that right, pay to him such sum representing the value of that right as may be agreed between the Company and the owner or, in default of agreement, determined by arbitration.

(b) In any arbitration under this subsection the reference shall be to a single arbitrator to be appointed by agreement between the parties or, in default of agreement, to be appointed by the President of the Royal Institution of Chartered Surveyors on the application of either party after giving notice in writing to the other party.

(10) The Company shall cause a record to be made of each memorial removed under this section containing—

- (a) a copy of any legible inscription on it; and
- (b) if it is intended to preserve the memorial, a statement showing where it has been taken;

and shall deposit a copy of the record with the Registrar General.

For protection of
Commonwealth
War Graves
Commission.

4.—(1) In this section “Commonwealth war burial” means a burial of any officer, rating or other rank of the naval, military or air forces of His Majesty who died in the war of 1914 to 1921 or in the war of 1939 to 1947 or of any other person accepted by the Commission as falling within the terms of its founding Royal Charters.

(2) The powers conferred by section 3 (Power to extinguish rights of burial in cemetery) above shall not, without the consent of the Commission, be exercised by the Company in respect of any grave space or any memorial in or on any grave space situated in the cemetery and relating to or concerning any of the 189 Commonwealth war burials, particulars whereof are recorded on the list dated November 1987 signed in duplicate by Gerald Carl Scott the superintendent of the cemetery, on behalf of the Company and by Graham Condren Reddie, on behalf of the Commission, one copy of which has been deposited at the offices of the said superintendent and the other at the offices of the Commission.

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